

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #01	CCRB Case #: 201803065	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/10/2018 6:05 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/10/2019	Precinct: 73		
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/20/2018 11:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Furegno	12784	934891	073 PCT
2. An officer			ESU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John McGivney	00851	942162	INT CIS
2. POM Kevin Costello	07604	944467	ESS 10
3. DTS Shawn Soler	05036	927537	E S U

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	B . Unfounded
C . POM Christophe Furegno	Discourtesy: PO Christopher Furegno spoke discourteously to § 87(2)(b)	C . Unfounded
D . POM Christophe Furegno	Abuse: PO Christopher Furegno refused to show the search warrant to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated

Case Summary

On April 12, 2018, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. It was referred to the CCRB, and received on April 20, 2018, under log number 18-14789.

On April 10, 2018, at approximately 6:05 a.m., § 87(2)(b) was in her home, apartment § 87(2)(b), in Brooklyn, with her girlfriend, § 87(2)(b), her § 87(2)(b), § 87(2)(b), and two of her friends, § 87(2)(b) and § 87(2)(b). PO Christopher Furegno, of the 73rd Precinct, and Sgt. John McGivney, PO Kevin Costello, and Det. Shawn Soler of the Emergency Services Unit, and other officers executed a search warrant (Board Review 01) at the location. During the search, one of the officers allegedly said, “Freeze motherfucker... I’ll shoot your head off” (**Allegations A and B – Discourtesy and Abuse of Authority: Unsubstantiated, Unfounded**). The officers apprehended them, and then PO Furegno came in to execute the search. After finding a small amount of marijuana, PO Furegno allegedly said to § 87(2)(b) “I don’t want this. This is a motherfucking summons,” (**Allegation C – Discourtesy: Unfounded**). § 87(2)(b) asked to see the search warrant, but no one showed it to her (**Allegation D – Abuse of Authority: Unsubstantiated**). § 87(2)(b) was issued a summons for § 87(2)(b) and § 87(2)(b) was arrested § 87(2)(a) 160.50.

There is no video footage of this incident.

Findings and Recommendations

Allegation (A) Discourtesy: An officer spoke discourteously to § 87(2)(b)
Allegation (B) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (Board Review 02) stated that three officers who she could not describe beyond that they were males in tactical gear came into her room and one shouted, “Freeze motherfuckers” and then said, “I’ll shoot your fucking head off.” § 87(2)(b) (Board Review 03), who was in the room with § 87(2)(b) did not corroborate this testimony. She stated that officers said, “Get the fuck on the ground,” but she specifically denied that any officer said, “We’ll shoot your head off.” § 87(2)(b) (Board Review 04) was not present for these allegations and did not provide a verified statement to the CCRB, only a phone statement. Neither § 87(2)(b) nor § 87(2)(b) could be reached by the CCRB, despite numerous contact attempts.

PO Furegno (Board Review 05), Sgt. McGivney (Board Review 06), PO Costello (Board Review 07), and Det. Soler (Board Review 08), denied these allegations. According to police documentation (Board Review 09), PO Costello and Det. Soler were the officers that entered § 87(2)(b)s bedroom and apprehended her.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be **unsubstantiated.** § 87(2)(g)

Therefore, it is recommended that **Allegation B** be **unfounded.**
Allegation (C) Discourtesy: PO Christopher Furegno spoke discourteously to § 87(2)(b)

Allegation (D) Abuse of Authority: PO Christopher Furegno refused to show the search warrant to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that PO Furegno stated, “This is a motherfucking summons,” after finding a small quantity of marijuana during the search of their room. § 87(2)(b) also stated that she asked PO Furegno to see a copy of the search warrant and was told that they would show it to her later, but never did. § 87(2)(b) corroborated that PO Furegno said that he would issue them a summons for the marijuana, but never heard him or any other officer say “Motherfucker.” She stated that she asked officers to see a copy of the search warrant, and they told her that they would show it to § 87(2)(b) and never showed it to her. § 87(2)(b) was not present for the alleged discourtesy, but did state that people in the apartment repeatedly asked officers to see a copy of the search warrant, but were never presented with one.

PO Furegno and Sgt. McGivney both stated that they had copies of the warrant with them during the search, and that either § 87(2)(b) or someone else in the apartment asked to see it. They each stated that they provided a copy of it to § 87(2)(b) or someone else in the apartment before they left.

§ 87(2)(g)

Therefore, it is recommended that *Allegation C* be *unfounded* and *Allegation D* be closed as *unsubstantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been a victim in one allegation (Board Review 10):
 - § 87(2)(b)
- This is the first CCRB complaint involving § 87(2)(b) (Board Review 11).
- PO Furegno has been a member of service for 14 years and has been a subject in five CCRB complaints and 14 allegations, of which one was substantiated (Board Review 12):
 - 201608154 involved an allegation of an improper frisk against PO Furegno. The board recommended formalized training, which the NYPD imposed.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- A request for any related Notice of Claim was sent to the New York City Comptroller's office on October 16, 2018. No response has been received as of the date of this request (Board Review 15).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date